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MICHELLE STEPHENSON	: UNITED STATES DISTRICT COURT
	: EASTERN DISTRICT OF NEW YORK
Plaintiff(s),	:
	: CASE No.: <u>10 CV 1040</u>
against	:
	: CIVIL ACTION
	:
THE CITY OF NEW YORK, P.O. ROBERT	: AMENDED COMPLAINT
HARRISON, P.O. RONALD SCHMIDT,	:
P.O. KARL LEUDESDOEFF, P.O. THOMAS	:
REO, P.O. JAMES DAMERON,	: PLAINTIFF DEMANDS
P.O. CHRISTINA FARRELL	: TRIAL BY JURY
P.O. JUSTIN QUINLAN.	:
	:
Defendant(s).	: (ENV) (MDG)
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TAKE NOTICE, the Plaintiff, Michelle Stephenson, hereby appears in this action by her attorneys, The Law Offices of O'keke & Associates, P.C., and demands that all papers be served upon them, at the address below, in this matter.

Plaintiff, Michelle Stephenson, by her attorneys, O'keke & Associates, P.C., complaining of the defendants, The City of New York, P.O. ROBERT HARRISON, P.O. RONALD SCHMIDT, P.O. KARL LEUDESDOEFF, P.O. THOMAS REO, P.O. JAMES DAMERON, P.O. CHRISTINA FARRELL, P.O. JUSTIN QUINLAN, collectively referred to as the Defendants, upon information and belief alleges as follows:

NATURE OF THE ACTION

1. This is an action at law to redress the deprivation of rights secured to the plaintiff under color of statute, ordinance, regulation, custom, and or to redress the deprivation of rights, privileges, and immunities secured to the plaintiff by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States, and by Title 42 U.S.C. § 1983 [and § 1985], [and arising under the law and statutes of the State of New York].

2. This is an action to further seek compensation for the serious and permanent personal injuries sustained by the plaintiff, as a result of the negligence of the defendants, perpetrated while said defendant police officers were in the process of illegally and unlawfully arresting plaintiff.

JURISDICTION

3. The jurisdiction of this Court is invoked under 28 U.S.C. §1343(3), this being an action authorized by law to redress the deprivation of rights secured under color of state and city law, statute, ordinance, regulation, custom and usage of a right, privilege and immunity secured to the plaintiff by the Fourteenth Amendment to the Constitution of the United States. Jurisdiction of this court exists pursuant to 42 USC §1983 and under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.
4. All causes of action not relying exclusively on the aforementioned federal causes of action as a basis of this Court's jurisdiction are based on the Court's supplemental jurisdiction pursuant to 28 U.S.C. §1367 to hear state law causes of action. The events, parties, transactions, and injuries that form the basis of plaintiff's federal claims are identical to the events, parties, transactions, and injuries that form the basis of plaintiff's claims under applicable State and City laws.
5. As the deprivation of rights complained of herein occurred within the Eastern District of New York, venue is proper in this district pursuant to 28 U.S.C. §§1391 (b) and (c).

PARTIES

6. Plaintiff resides in Richmond Hill, New York and is a resident of the State of New York.
7. Defendants P.O. ROBERT HARRISON, P.O. RONALD SCHMIDT, P.O. KARL LEUDESORFF, P.O. THOMAS REO, P.O. JAMES DAMERON, P.O. CHRISTINA FARRELL, P.O. JUSTIN QUINLAN are all police officers for the City of New York, acting under color of state law. They are being sued in both their individual and official capacity.
8. The Defendant, City of New York is a municipality in the

State of New York and employs the Defendants Police Officers.

FACTUAL ALLEGATIONS COMMON TO ALL CAUSES OF ACTION

9. On or about June 30, 2009, at approximately 11:15pm, defendant Officers employed with the New York City Police Department and assigned to the 113th Precinct; Patrol Borough Queens South and Patrol Borough Queens South Task Force, without probable cause and/or justification, unlawfully and without probable cause arrested the plaintiff in or around 137-45 Bedell Street, located in the County of Queens, City and State of New York.
10. Prior to and after effecting the illegal arrest against the plaintiff, plaintiff was at a friend's house when the defendant officers burst through a door in the house with guns drawn. One of the defendant officers placed a gun to plaintiff's head, grabbed plaintiff and threw plaintiff to the floor, plaintiff was cuffed searched and taken outside, where she was made to sit on the floor for several minutes before being transported to the 113th precinct. Once at the precinct plaintiff was pedigreed kept standing by a wall for approximately 30 minutes and then handcuffed to another wall for approximately 18hours. That at some point plaintiff was charged with PL265.03, Criminal Possession of a Loaded Fire Arm in the Second degree, amongst other Criminal weapons charges. After almost 20 hours of waiting, plaintiff was then transported to the Central Bookings Division of the Queens County Criminal Court, where she was placed in a holding pen for several more hours before being brought before a Judge of the Criminal Court, at which point the charges were changed from her previous charges to PL221.05, Unlawful Possession of Marijuana. The case was dismissed and the plaintiff was released. That prior to being transported from the point of arrest, the plaintiff was searched, her pocketbook was also searched. The defendant officers found no firearms and or controlled substances on or around the plaintiff yet proceeded to falsely and maliciously charge her with the afore stated charges. Plaintiff was cursed at and violently handled by the defendants with no justifiable reason. Further items were taken by the defendants which till this day they have refused to return to plaintiff, notwithstanding that all charges were dismissed including but not limited to plaintiff's cell phone, and other items taken from her pocket book.

11. That plaintiff was unlawfully arrested, without any probable cause and or just reason, maliciously prosecuted, and illegally detained during that period.
12. That even though the defendant police officers knew, or should have known based on the facts that no crime had been committed by the plaintiff, they still proceeded to arrest plaintiff, unlawfully detain, and maliciously prosecute plaintiff just to intimidate plaintiff.
13. That at no time during the arrest was the plaintiff read her Miranda rights or provided with any food, drinks, or adequate restroom services.
14. At no time did plaintiff commit any offense against the laws of New York City and or State for which an arrest may be lawfully made. At no time did the plaintiff act against or in violation of the laws of New York State, or commit any illegal acts, or engage in any conduct which in any way justified the brutal and unlawful actions of the defendants.
15. As a direct and proximate result of defendants' actions, plaintiff suffered and continues to suffer injuries, including but not limited to emotional distress, nightmares, and unwarranted severe anger bouts and individual ailments some or all of which may be permanent. Due to actions of defendants, plaintiff has since been placed on anti-depressant medication.
16. The unlawful arrest of plaintiff, plaintiff's wrongful imprisonment because of defendants' knowledge of a lack of any legitimate cause or justification, were intentional, malicious, reckless and in bad faith.
17. As a direct and proximate result of defendants' actions, plaintiff suffered and continues to suffer, emotional distress, nightmares, and unwarranted severe anger bouts and individual ailments, some or all of which may be permanent. Due to actions of defendants, plaintiff has since been placed on anti-depressant medication.
18. As a direct and proximate result of their unlawful detention, confinement, Plaintiff has lived in terror of her attack, she continues to suffer from nightmares, is fearful of going outside, driving or being anywhere there

is police presence. Further, when she sees police, she suffers various emotional attacks, in addition, she has been unable to function normally which has caused severe strains and breakdown in her personal relationships, in and outside of her respective home.

19. As a direct and proximate result of defendants' actions, plaintiff was arrested, and detained unlawfully without any just cause or probable cause, causing plaintiff to suffer severe emotional distress and be placed on anti-depressant medication.
20. As a direct and proximate result of defendants' actions, plaintiff was deprived of rights, privileges and immunities under the Fourth and Fourteenth Amendments to the United States Constitution and the laws of the City of New York and the State of New York.
21. Defendant City of New York, as a matter of policy and practice, has with deliberate indifference failed to properly sanction or discipline police officers including the defendants in this case, for violations of the constitutional rights of citizens, thereby causing police officers including defendants in this case, to engage in unlawful conduct.
22. Defendant City of New York, as a matter of policy and practice, has with deliberate indifference failed to sanction or discipline police officers including the defendants in this case, who are aware of and subsequently conceal violations of the constitutional rights of citizens by other police officers thereby causing and encouraging police officers including defendants in this case, to engage in unlawful conduct.
23. The actions of defendants, acting under color of State law, deprived plaintiffs of their rights, privileges and immunities under the laws and Constitution of the United States; in particular, the rights to be secure in his person and property, to be free from the excessive use of force, abuse of process, and the right to due process.
24. By these actions, defendants have deprived plaintiffs of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, in violation of 42 U.S.C. Section 1983.

25. Plaintiffs continue to suffer physically and emotionally due to the actions of the defendants.
26. This action has been commenced within one year and ninety days after the happening of the event upon which the claim is based.

AS A FIRST CAUSE OF ACTION:

42 U.S.C Section 1983-against Defendants Officers

27. Plaintiff hereby restates paragraphs 1-26 of this complaint, as though fully set forth below
28. By detaining and imprisoning the plaintiff without justification, probable cause or reasonable suspicion, the Defendants' Officers, deprived Plaintiff of rights, remedies, privileges, and immunities guaranteed to every citizen of the United States, in violation of 42 U.S.C. Section 1983, including, but not limited to, rights guaranteed by the Fourth and Fourteenth Amendments of the United States Constitution.
29. In addition, the Defendant officers conspired among themselves to deprive plaintiffs of their constitutional rights secured by 42 U.S.C. Section 1983, and by the Fourth and Fourteenth Amendments to United States Constitution, and took numerous overt steps in furtherance of such conspiracy, as set forth above.
30. The Defendant Officers acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employment as NYPD Officers. Said acts by the Defendant Officers named and unnamed were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers, and said Defendants acted willfully, knowingly, and with the specific intent to deprive the Plaintiffs of their constitutional rights secured by 42 U.S.C. Section 1983, and by the Fourth and Fourteenth Amendments to the United States Constitution.
31. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiffs sustained the damages herein before stated.

AS A SECOND CAUSE OF ACTION:

New York State Constitution, Art. 1 Section 12

32. Plaintiff hereby restates paragraph 1-31 of this complaint, as though fully set forth below
33. By detaining and imprisoning the plaintiff without probable cause or reasonable suspicion, using excessive force, and assaulting them, the Defendant Officers deprived Plaintiffs of rights, remedies, privileges, and immunities guaranteed to every New Yorker by Article 1, Section 12 of the New York Constitution.
34. In addition, the Defendant officers conspired among themselves to deprive plaintiffs of their constitutional rights secured by Article 1, Section 12 of the New York Constitution, and took numerous overt steps in furtherance of such conspiracy, as set forth above.
35. The Defendant Officers acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employment as NYPD Officers. Said acts by the Defendant Officers named and unnamed were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers, and said Defendants acted willfully, knowingly, and with the specific intent to deprive the Plaintiff of his constitutional rights secured by Article 1, Section 12 of the New York Constitution.
36. Defendants, their officers, attorneys, agents, servants and employees were responsible for Plaintiffs' deprivation of their state constitutional rights. Defendant City, as employer of each of the Officer Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
37. As a direct and proximate result of the misconduct and abuse of authority detailed above, plaintiff sustained the damages herein-before alleged.

AS A THIRD CAUSE OF ACTION:

Assault and Battery and use of Excessive Force--all Defendants

38. Plaintiffs hereby restates paragraph 1-37 of this complaint, as though fully set forth below
39. In using excessive force, physically assaulting, handcuffing, slamming on the floor, kneeling, hitting threatening and intimidating plaintiffs, the Defendant Officers, acting in their capacities as NYPD Officers, and within the scope of their employment, each committed a willful, unlawful, unwarranted, and intentional assault and battery upon plaintiffs.
40. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiffs sustained the damages hereinbefore stated.

AS A FOURTH CAUSE OF ACTION:

False Arrest and False Imprisonment--all defendants

41. Plaintiffs hereby restates paragraph 1-40 of this complaint, as though fully set forth below
42. The Defendant Officers wrongfully and illegally detained, and imprisoned the Plaintiffs.
43. The wrongful arrest and imprisonment of the Plaintiffs was carried out without a valid warrant, without Plaintiffs' consent, and without probable cause or reasonable suspicion.
44. At all relevant times, the Defendant Officers acted forcibly in apprehending, detaining, and imprisoning the Plaintiffs.
45. During this period, the Plaintiffs were unlawfully and wrongfully assaulted, harassed, detained, and threatened.
46. Throughout this period, the Plaintiffs were unlawfully, wrongfully, and unjustifiably detained, deprived of their liberty, and imprisoned.
47. All of the foregoing occurred without any fault or provocation on the part of the Plaintiffs.
48. Defendants, their officers, agents, servants, and employees were responsible for plaintiffs' detention and imprisonment during this period of time. Defendant City of New York, as

employer of the Officers Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

49. The Defendant Officers acted with a knowing, willful, wanton, grossly reckless, unlawful, unreasonable, unconscionable, and flagrant disregard of the Plaintiffs' rights, privileges, welfare, and well-being and are guilty of egregious and gross misconduct toward Plaintiff.
50. As a direct and proximate result of the misconduct and abuse of authority detailed above, plaintiffs sustained the damages herein-before stated.

AS FOR A FIFTH CAUSE OF ACTION:

Intentional Infliction of Emotional Distress-all Defendants

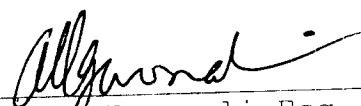
51. The Plaintiffs hereby restates paragraph 1-50 of this complaint, as though fully set forth below.
52. The Defendant Officers engaged in extreme and outrageous conduct, intentionally and recklessly causing severe emotional distress to plaintiffs.
53. Plaintiffs' emotional distress has damaged their personal and professional lives because of the severe mental pain and anguish which were inflicted through deliberate and malicious detention and imprisonment by the Defendants Officers.
54. Defendants, their officers, agents' servants, and employees were responsible for the intentional infliction of emotional distress suffered by the Plaintiffs at the hands of the Defendant Officers named and unnamed, defendant City of New York, as employer of the Officers, is responsible for their wrongdoing under the doctrine of respondeat superior.
55. As a direct and proximate result of the misconduct and abuse of authority detailed above, plaintiffs sustained the damages herein-before stated.

WHEREFORE, plaintiffs respectfully requests judgment against the Defendants as follows:

1. On the First Cause of Action against all the defendants, compensatory and punitive damages in an amount to be determined at trial, and reasonable attorneys' fees and costs under 42 U.S.C. Section 1988;
2. On the Second Cause of Action, against all Defendants, compensatory damages in an amount to be determined at trial, and punitive damages against the Officers Defendants in an amount to be determined at trial;
3. On the Third Cause of Action, against all Defendants, compensatory damages in an amount to be determined at trial, punitive damages against the Officers Defendants in an amount to be determined at trial;
4. On the Fourth Cause of Action, against all Defendants, compensatory damages in an amount to be determined at trial, punitive damages against the Officers Defendants in an amount to be determined at trial;
5. On the Fifth Cause of Action, against all Defendants, compensatory damages in an amount to be determined at trial, punitive damages against the Officers Defendants in an amount to be determined at trial;
6. Such other and further relief as this Court may deem necessary in the interest of justice.

Dated: June 11, 2010
Brooklyn, New York

O'keke & Associates, PC


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TO:

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Civil Case Number: 10 CV 1040 Attorney: Adanna Ugwonali [AU 3226]

**UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK**

MICHELLE STEPHENSON

Plaintiff(s),

against

THE CITY OF NEW YORK, P.O. ROBERT HARRISON, "JOHN DOE" AND "JANE DOE" 1'through'12 inclusive "JOHN DOE" AND "JANE DOE" 1'through'5 inclusive, the names of the last defendants being fictitious, the true names of the defendants being unknown to the plaintiff.

Defendant(s).

AMENDED COMPLAINT

O'KEKE & ASSOCIATES, PC.

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To:

Defendants/Attorney(s) For Defendants.

Service of a copy of the within is hereby admitted

Dated: _____

Attorney(S) For: _____
